

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CELIA LUCRECIA N. VASQUEZ CANDELL,	)	Case Number: FDI-25-802072
Petitioner	)	Hearing Date: May 12, 2026
VS.	)	Hearing Time: 9:00 AM
BYRON A. IXCAL AVILA,	)	Department: 403
Respondent	)	Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Celia Candell (Mother) and Respondent Byron Avila (Father). The parties have one minor child: Genesis Vasquez (DOB: 08/02/10).
- 2) On December 30, 2025, Father filed a Request for Order seeking initial custody and visitation orders. Father seeks:
 - a. Joint legal and joint physical custody.
 - b. Week on/week off schedule.
 - c. Exchanges facilitated by parent walking the child to the other parent’s apartment upon conclusion of their parenting time.
 - d. A review hearing to ensure visits are moving forward without issue.
- 3) On November 19, 2025, the parties executed a Stipulation and Order, which was signed by the Court and provides for the following terms:
 - a. Continuance of the issues contained in Father’s Request for Order filed April 16, 2025, to January 22, 2026;

- b. Joint legal custody of the minor child;
 - c. Physical custody of the minor child to Mother;
 - d. An agreement to appoint a mutually selected expert to conduct a Brief Focused Assessment; and
 - e. An agreement that Father shall pay guideline child support and temporary spousal support with exchange of updated Income and Expense Declarations and reservation of retroactive support.
- 4) On January 14, 2026, Mother filed a Responsive Declaration to Father's Request for Order in which she asks the Court to:
- a. Grant her sole legal and sole physical custody of the minor child; and
 - b. Grant parenting time to Father on Sundays.
- 5) On January 27, 2026, Father filed a declaration, which has been read and considered by the Court.
- 6) On February 20, 2026, the parties entered into a Stipulation and Order, which provides that the parents will communicate via Our Family Wizard (OFW) and they will each pay their own costs for the OFW Application.
- 7) On April 14, 2026, the parties appeared at hearing; however, a Spanish language interpreter was not available. On the Court's own motion, the matter was continued to May 12, 2026.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Mother and Father shall share joint legal custody of the minor child.
- 3) Mother shall have sole physical custody of the minor child.
- 4) Father's parenting time with the minor child shall be on alternate weekends from Friday at 6:00 p.m. to Sunday at 6:00 p.m. Father's first weekend shall commence on Friday May 15, 2026.
- 5) The parents are permitted to modify the parenting plan by mutual written agreement (e.g., OFW, email, or letter) provided they deem doing so is in the minor child's best-interest.
- 6) All prior orders not in conflict with the orders made herein shall remain in full force and effect.

7) The Court will prepare the Findings and Order After Hearing.